

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #03	CCRB Case #: 201504566	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 06/04/2015 8:45 PM	Location of Incident: 219 1st Avenue	18 Mo. SOL 12/4/2016	Precinct: 09		
Date/Time CV Reported Fri, 06/05/2015 11:32 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 06/05/2015 11:32 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POF Jessica Torres	01909	939592	009 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Bryan Thoooho	05250	957216	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Jessica Torres	Abuse: PO Jessica Torres refused to provide her name and shield number to § 87(2)(b)	A . Unfounded
B . POF Jessica Torres	Off. Language: PO Jessica Torres made remarks to § 87(2)(b) based upon the perceived age of § 87(2)(b)	B . Unsubstantiated

Case Summary

On June 4, 2015, at approximately 8:45 p.m., § 87(2)(b) went to Starbucks, located at 219 1st Avenue in Manhattan. § 87(2)(b) had a dispute with § 87(2)(b) and called 911. § 87(2)(b) § 87(2)(b) son, § 87(2)(b) and his after-school program teacher, § 87(2)(b) arrived at Starbucks. PO Jessica Torres and PO Bryan Thoocho of the 9th Precinct responded to the 911 call and told § 87(2)(b) that she had to leave. When § 87(2)(b) and the officers left Starbucks, § 87(2)(b) asked PO Torres for her name and shield number, which PO Torres allegedly refused to provide (**Allegation A**). PO Torres then stated to § 87(2)(b) “Oh you know, you young girls,” which offended § 87(2)(b) as she interpreted it as PO Torres not respecting her due to her age (**Allegation B**).

Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) during her interview on June 5, 2015. She rejected mediation § 87(2)(b)
- As of June 15, 2015, § 87(2)(b) had not filed a Notice of Claim with the city of New York with regard to this incident (Board review 1).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the third CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- PO Torres has been a member of the NYPD for ten years, has had three previous CCRB allegations involving two cases with no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Recommendations

Allegation A – PO Jessica Torres refused to provide her name and/or shield to § 87(2)(b)

§ 87(2)(b) provided a sworn statement to the CCRB on June 5, 2015, and alleged that while standing outside of Starbucks next to the officers’ RMP, she asked PO Torres for her name and shield number. PO Torres spoke over her as she asked, and fidgeted back and forth, moving her jacket side to side in what seemed like an attempt to conceal her shield. As PO Torres continued to speak over § 87(2)(b) § 87(2)(b) asked for her name and shield again, which PO Torres again did not provide. § 87(2)(b) asked for her name and shield number a third time and still received no answer. PO Torres spoke over § 87(2)(b) throughout their conversation but § 87(2)(b) believed PO Torres heard her requests. They stood approximately two feet from each other. At one point § 87(2)(b) managed to catch a glimpse of PO Torres’ shield and wrote down her name and shield number. § 87(2)(b) provided the correct name and shield number to

Squad: ____

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date